

SUN v HEWITT

25CV47796

PLAINTIFF'S MOTION FOR COURT JUDGMENT AGAINST PERSONS UNKNOWN

Plaintiff Jerry L. Sun (Plaintiff) brings this action to quiet title to real property commonly known as APN 014-006-017 ("Parcel One") so that clear title can be vested in Plaintiff's name. Now before the Court is Plaintiff's Motion for Judgment Against All Persons Unknown.

The motion is unopposed.

I. Factual Background

Plaintiff is the owner of Parcel One. (Declaration of Jerry L. Sun ("Sun Decl.") ¶ 4), one of four parcels that were granted to Plaintiff in 2022 (collectively "Properties.") (*Id.* ¶ 5.) The Properties are unimproved real properties located off Highway 26 in Calaveras County. (*Ibid.*) Plaintiff purchased the Properties by way of Grant Deed recorded in the Official Records of Calaveras County on May 13, 2022, as Document No. 2022-006556 (the "Sun Grant Deed") (*Id.* ¶ 6, Ex. F.) The grantor was Campstool II, a California limited partnership ("Campstool II.") (*Id.* ¶ 7.)

In February 2023, Plaintiff received a letter from the Calaveras County Assessor's Office advising that it was unable to transfer title for two parcels in the Properties due to title discrepancies. (Sun Decl. ¶ 8, Ex. G.) The Assessor's Office believed that title to one of the parcels (APN 014-006-021) was currently held in the names of Timothy J. Lane, Erin Anne Lane and Scott C. Lane. (*Ibid.*) That error was corrected and Plaintiff now has clear title to APN 014-006-021. (*Ibid.*) The Assessor's Office further advised that it was unable to transfer title for Parcel One because it believed that Campstool II only held a 50% interest in that property, as opposed to a 100% interest, and that Louis C. Pagliaro and Gladys M. Pagliaro owned the other 50% interest in Parcel One. (*Ibid.*)

On February 21, 2025, Plaintiff agreed to a Stipulated Judgment with Alouise Marie Hewitt, Gladys Anita Tosh, and Alexander H.L. Pagliaro (the “Named Defendants”) in this matter. (Sun Decl. ¶ 11; Ex. E.) These are the three children of Louis and Gladys Pagliaro. (Mtn. p. 4.)

As a result the only Defendants remaining are the “Unknown Defendants.” (*Ibid.*)

II. Legal Standard and Discussion

In an action to quiet title to real property, Code Civ. Proc. section 762.060 expressly authorizes the plaintiff to “name as defendant ‘all persons unknown, claiming any legal or equitable right, title, estate, lien, or interest in the property described in the complaint adverse to plaintiff’s title, or any cloud upon plaintiff’s title thereto,’ naming them in that manner.” (CCP § 762.060(a).) Under California law therefore enables a plaintiff to obtain a “judgment in the action [that] is binding and conclusive on ... [a]ll persons known and unknown who were parties to the action and who have any claim to the property, whether present or future, vested or contingent, legal or equitable, several or undivided.” (CCP § 764.030(a).)

“A person named and served as an unknown defendant has the same rights as are provided by law in cases of all other defendants named and served, and the action shall proceed against unknown defendants in the same manner as against other defendants named and served, and with the same effect.” (CCP § 762.070.) When service by publication is made, any judgment against an unknown defendant who fails to appear is conclusive as to that property only. (CCP § 763.030(b).) Further, “whenever the Court orders service by publication, the court before hearing the case shall require proof that the summons has been served, posted, published as required, and that the notice of pendency of action has been filed.” (CCP § 763.040.)

According to Plaintiff’s counsel none of the Unknown Defendants are in open and actual possession of the Properties. (Declaration of Dominic V. Signorotti (“Signorotti Decl.”) ¶ 10.) Plaintiff used reasonable diligence to ascertain the identity and residence of the Unknown Defendants, including analyzing documents reflecting title companies’ investigations of all potential owners of any interest in the Properties. (*Ibid.*) These efforts were unsuccessful. (*Ibid.*)

On February 27, 2025, this Court granted Plaintiff’s Ex Parte Application for Order for Service by Publication of Summons and Complaint against the Unknown Defendants. Mr. Signorotti avers that the Unknown Defendants were all served with the Summons and Complaint via publication on April 4, 11, 18, and 25, of 2025, in the Ledger Dispatch

in the county of Calaveras. (Id. ¶ 11.) Plaintiff filed Proof of Service on May 6, 2025 and there has been no response from the Unknown Defendants. (*Ibid.*)

A stipulation of entry of judgment between Plaintiff and Named Defendants was filed on July 8, 2025.

The Court finds that the Unknown Defendants were properly served by publication and failed to respond to the Complaint or to the instant motion.

Accordingly, Plaintiff's motion is **GRANTED**.

The clerk shall provide notice of this ruling to the parties forthwith. The Court intends to sign the submitted Order.